

PAY ADVANCE AGREEMENT – TERMS AND CONDITIONS

PAY ADVANCE REPAYMENT SCHEDULE

The following schedule (your "**Pay Advance Repayment Schedule**") sets out the details of your Pay Advance and your repayment obligations:

PAY ADVANCE COMMENCEMENT DATE	Sun 02 Jan 2022
CUSTOMER NAME	Richard Mclean
CUSTOMER ADDRESS	2 McCubbin Street, footscray VIC 3011
AMOUNT BORROWED	\$100.00
FEES	\$5.00
TOTAL AMOUNT TO REPAY	\$105.00
NUMBER OF REPAYMENTS	1
REPAYMENT SCHEDULE AND DUE DATE(S)	Instalment no. 1: \$105.00 due on 07/01/2022 Instalment no. 2: NA Instalment no. 3: NA Instalment no. 4: NA
PAY ADVANCE TERM	6 days

1. OVERVIEW

- 1.1 Beforepay Finance Pty Ltd ACN 636 670 525 (referred to as **we, us** or **Beforepay**) allows you to borrow up to your individual pay advance limit by way of a short-term pay advance (your **Pay Advance**). Your Pay Advance may only be cashed-out in one single drawing.
- 1.2 If we charge you a transaction fee, it will not exceed 5% of the amount of credit you draw out under your Pay Advance. We do not charge interest.
- 1.3 Subject to the terms of this Agreement, we require you to repay your Pay Advance in accordance with your Pay Advance Repayment Schedule. Your Pay Advance Repayment Schedule will specify whether you need to repay your Pay Advance:
(a) in full on your next pay date; or

(b) by instalments.

- 1.4 You must repay your Pay Advance in accordance with the due date(s) and Pay Advance term specified in your Pay Advance Repayment Schedule (the **Pay Advance Repayment Date(s)**). Your Pay Advance term cannot exceed 62 days.
- 1.5 Once you make a repayment of your Pay Advance (whether in whole or in part) it cannot be redrawn again as part of your Pay Advance.

2. IMPORTANT INFORMATION ABOUT YOUR CONSUMER RIGHTS

- 2.1 Beforepay is exempt from the requirement to hold an Australian Credit Licence under the *National Consumer Credit Act 2009* (Cth) (**NCCP Act**) and *National Credit Code* (**NCC**) because we provide a form of short-term credit by way of a Pay Advance which falls within the Short-Term Credit Exemption in section 6(1) of the NCC. This is because we provide credit for a total period that does not exceed 62 days; our credit fees and charges do not exceed 5% of the amount of credit; and we do not charge any interest. As a result, you will not have the benefit of the protections for consumer credit under the NCCP Act and NCC.
- 2.2 Nevertheless, as a consumer you may have certain rights and remedies under the *Australian Securities and Investments Commission Act 2001* (Cth) and the *Competition and Consumer Act 2010* (Cth).

3. YOUR AGREEMENT WITH BEFOREPAY

- 3.1 Your Beforepay Pay Advance Agreement (this **Agreement**) is a legally binding contract between you and us and comprises of the following:
- (a) these Pay Advance Agreement Terms and Conditions (the **Terms**), including your Pay Advance Repayment Schedule set out above;
 - (b) the Split Payments Pty Ltd (**Split**) terms and conditions of the direct debit request (**Direct Debit Terms**) set out below; and
 - (c) the terms of service (**Terms of Service**) set out in your Application (your **Application**) which you submit through the Beforepay mobile application or the Beforepay website. Please read the Agreement carefully to ensure that you understand your obligations to us.

4. SETTING UP YOUR PAY ADVANCE

- 4.1 Before we fund your Pay Advance, you must meet our requirements. Specifically, you must agree to our Privacy Policy which can be found at <https://www.beforepay.com.au/privacy> and a direct debit authority form to nominate a bank account that our direct debit solutions provider, Split, can debit your Pay Advance repayments from in accordance with your Pay Advance Repayment Schedule set out above.
- 4.2 We will pay your Pay Advance into the bank account nominated by you (which will be the account your salary is paid into) to us in your Beforepay account.
- 4.3 If you wish to cancel, update or otherwise alter the direct debit arrangement you have set up under clause 4.1 please email us on support@beforepay.com.au.

5. ENTERING INTO YOUR BEFOREPAY PAY ADVANCE AGREEMENT

- 5.1 As set out above, your Agreement with Beforepay is comprised of these Terms, including your Pay Advance Repayment Schedule, the Direct Debit Terms and the Terms of Service in your

Application.

- 5.2 By submitting your Application electronically and accepting these Terms by swiping to accept or selecting the checkbox, you agree to enter into a legally binding agreement.
- 5.3 You may make any number of Applications however we reserve the right to assess and determine whether to accept your Application.
- 5.4 Your Agreement becomes legally binding if we accept your Application and disburse funds into the bank account that you have nominated.

6. HOW MUCH CAN YOU BORROW, FEES AND CHARGES?

- 6.1 We will determine the amount you can borrow based on our reasonable assessment of the information you have provided about your employment and financial situation in your Application.
- 6.2 If we accept your Application, we will provide you with the Pay Advance in accordance with the terms of this Agreement.
- 6.3 A transaction fee of up to 5% is payable on the amount that you cash-out under your Pay Advance. We will charge you this transaction fee on your selected date(s) of repayment. For example, if you cash-out \$200, and you decide to make the repayments over 2 pay cycles, we will direct debit \$105 from your account on each repayment date which coincides with your pay cycle. The additional \$10 over the 2 pay cycles accounts for the 5% transaction fee.
- 6.4 You must cash-out your Pay Advance within 1 working day of us approving your Application. If you do not do so, we may need to reassess your Application to protect our legitimate interests. Further, you may decide you do not want to cash-out your entire Pay Advance, and may only want to cash-out a portion of your Pay Advance. In such case, any balance of your Pay Advance that has not been cashed-out will immediately be cancelled and you will not be able to access the balance of funds.

7. REPAYING YOUR BEFOREPAY PAY ADVANCE

- 7.1 We require, and you agree:
 - (a) to enter into a standing direct debit authority with Split which authorises Split to deduct the repayments due under your Pay Advance Repayment Schedule by direct debit. Please note that if a scheduled repayment falls due on a weekend or a public holiday, Split will debit the repayment on the next working day;
 - (b) that if you have insufficient funds in your account on the date that Split first attempts to direct debit your account, Split may continue to attempt to direct debit your account:
 - (i) until the repayment amount has been direct debited in full within 62 days from the date you make your first cash-out under your Pay Advance; or
 - (ii) after we have advised you that you are in default, in each case, until the direct debit has been debited in full;
 - (c) to repay the amount that you have cashed-out plus the transaction fee attributable to that cashed-out amount in accordance with the terms of this Agreement.
- 7.2 If we receive a part repayment, we may allocate it to any amount that you owe us, in any order, acting reasonably, and we may continue to debit your account under your direct debit authority until the entire balance is repaid.

- 7.3 Notwithstanding any other provisions of this Agreement and subject to any statutory right of set-off, you must make all payments in accordance with your Pay Advance Repayment Schedule in full without any set-off, withholding or reduction for any reason whatsoever.
- 7.4 Your repayments are taken to be made when we receive the cleared repayment into our bank account.
- 7.5 We will not pay interest on any overpayment made by you.
- 7.6 If we receive an overpayment from you, we will return the overpaid amount as soon as practicable but in any event within 20 working days to the account from which the original funds were transferred or sourced from.
- 7.7 You may pay off your Pay Advance early without any penalty or early termination fees. If you wish to pay off your Pay Advance early, you may do so through the Beforepay mobile application or the Beforepay website, or alternatively please contact us on support@beforepay.com.au.

8. DEFAULT

- 8.1 Subject to clause 8.2, you are in default under this Agreement if:
- (a) you fail to make any repayment in accordance with terms of the Agreement; and/or
 - (b) you breach a warranty or a material term of the Agreement, (each an **Event of Default**).
- 8.2 You will not be in default under this Agreement if an Event of Default was caused by, or is otherwise the result of, the direct or indirect acts and/or omissions of Beforepay, its agents, representatives and/or employees (including, for the avoidance of doubt, the actions and/or omissions of Split).
- 8.3 If you are in default, we may take one or more of the following actions:
- (a) attempt to debit the repayment again (up to day 62 of the Pay Advance);
 - (b) suspend your Beforepay profile;
 - (c) call you and/or write to you and require you to immediately repay all amounts that you owe to us. You may elect to make this immediate repayment through an available payment method, including but not limited to, direct debit or PayID. We will provide you with the details necessary for you to make a payment to us when we contact you; and/or
 - (d) take any other action that is reasonable in the circumstances, including but not limited to referring your account to a third-party debt collection agency.
- 8.4 Further, if we are required to undertake enforcement action in respect to amounts owed by you, you may be liable for all enforcement expenses reasonably incurred.

9. TERM AND TERMINATION

- 9.1 The term of your Pay Advance with us must be no more than 62 days. For the avoidance of doubt, you must repay your Pay Advance on the Pay Advance Repayment Date(s) specified in the Pay Advance Repayment Schedule and any failure to do so will constitute an Event of Default in accordance with Clause 8.1.
- 9.2 You may terminate this Agreement at any time voluntarily without cost by paying in full all amounts that you owe us, including all transaction fees.
- 9.3 We may terminate your Agreement immediately without notice if:
- (a) required for regulatory reasons; and/or

(b) you have engaged in (or we reasonably suspect that you have engaged in) fraudulent or other unlawful behaviour in connection with your Pay Advance.

10. YOUR WARRANTIES

- 10.1 By signing your Agreement, you warrant to us that:
- (a) you have used reasonable endeavours to ensure all material information that you have provided to us is correct at the date you submitted your Application for your Pay Advance;
 - (b) you will not allow another person to use your Beforepay profile, and you will protect your security credentials;
 - (c) you are above 18 years old and an Australian citizen, permanent resident or on a valid Australian work visa;
 - (d) you are not experiencing financial hardship at the time of making an application for your Pay Advance that would prevent you from repaying your Pay Advance on your scheduled repayment date(s) in accordance with your Pay Advance Repayment Schedule;
 - (e) you have made your own enquiries about whether our services are appropriate for you; and
 - (f) you will keep your personal and communication details updated and will regularly check your communication methods for correspondence from us.

11. YOUR KEY OBLIGATIONS

- 11.1 You must:
- (a) provide accurate bank account details in which to receive your Pay Advance funds. Please be aware that while we can ask our account holder to investigate an incorrect payment, we cannot guarantee the return of lost funds, and we are not liable for an incorrect payment that has been made because you have provided us with inaccurate bank account details. If, however, a payment is made incorrectly as a result of an error by Beforepay, its agents, representatives and/or employees, we will endeavour to rectify the error and procure the deposit of the Pay Advance funds into your bank account as soon as reasonably practicable after we are first made aware that an error has occurred;
 - (b) protect your Beforepay security credentials and notify us immediately if you suspect that your security has been compromised;
 - (c) keep in place a valid direct debit authorisation with us and update that direct debit authorisation if your bank account details change. You can update your direct debit authorisation by contacting us at support@beforepay.com.au.

12. PRIVACY

- 12.1 Your privacy is important to us. You acknowledge and consent to Beforepay collecting, using, disclosing and holding your personal information in accordance with the terms of our Privacy Policy which can be found at <https://www.beforepay.com.au/privacy>.

13. COMPLAINTS HANDLING AND DISPUTES

Questions and feedback

- 13.1 If you have a query or feedback, please contact Beforepay at support@beforepay.com.au. Beforepay will attempt to resolve your query within 5 working days. If we are unable to

resolve your query within 5 working days, we will endeavour to provide you with a written response within 21 days.

Complaints and disputes

- 13.2 If you wish to raise a dispute or submit a complaint to us, please contact us at complaints@beforepay.com.au as soon as possible. Disputes and complaints will be managed in accordance with our Complaints Policy which can be found at <https://www.beforepay.com.au/complaints/>.
- 13.3 Under our Complaints Policy we:
- (a) will acknowledge receipt of all complaints within 1 working day or as soon as reasonably practicable after receiving the complaint;
 - (b) will provide an initial response to all complaints within 10 working days of acknowledging receipt of the complaint; and
 - (c) aim to resolve all complaints within 21 days of receipt of the complaint.
- 13.4 We may request additional documentation from you to assist us in resolving any complaints or disputes, and you must provide all reasonable assistance to us to facilitate us in resolving any complaints or disputes.
- 13.5 Where we cannot resolve a dispute within 21 days, we will notify you of the reason for the delay and provide an indication of when we expect to resolve the complaint or dispute.
- 13.6 When we have completed our investigation of your complaint, we will provide you with a written response, which will include:
- (a) the outcome of our investigation;
 - (b) your right to take your complaint to the Australian Financial Complaints Authority (**AFCA**); and
 - (c) AFCA's contact details.
- 13.7 There may be some circumstances where (unless otherwise required to do so) we will not provide a written response to you because we have either:
- (a) resolved the complaint to your satisfaction within 5 working days; or
 - (b) given you an appropriate explanation and/or apology and there are no further actions we can take to reasonably address the complaint.
- 13.8 If you are not satisfied with the outcome of your complaint after it has been through our internal disputes process above, you can contact AFCA using the contact details listed below.
- Email: info@afca.org.au
Website: www.afca.org.au
Phone: 1800 931 678 (free call)
Postal Address: Australian Financial Complaints Authority GPO Box 3, Melbourne VIC 3001

14. LET US KNOW OF ANY CHANGES

- 14.1 You must tell us as soon as possible if you change your name, address, other contact details and/or your employment or financial situation changes.

15. NOTICES AND COMMUNICATIONS

- 15.1 You authorise us to send you notices and to contact you about the services we provide

using the email address, mobile number and other contact details you provide to Beforepay, including by displaying an appropriate notice on our app.

- 15.2 As we are a digital company, if you withdraw your consent to be contacted electronically, we reserve the right to suspend your Beforepay profile.
- 15.3 You may send us notices in writing by email to support@beforepay.com.au.

16. VARIATIONS TO THIS AGREEMENT

- 16.1 Subject to clause 16.2 and 18.1, the Agreement may not be varied without the consent of either party.
- 16.2 Please be aware that we may change these Terms from time to time. We will contact you via the email address registered on your Beforepay account regarding any changes to these Terms as follows:
- (a) if we make material changes to our Terms, including if we introduce new fees or make changes to existing fees, we will seek your consent prior to those changes being implemented. If you do not consent to these changes then you may terminate your Pay Advance in accordance with clause 9.2;
 - (b) if we make non-material changes to our Terms, we will provide you with 30 days' notice prior to the implementation of the changes.
- 16.3 Notwithstanding clause 16.1 and 16.2, we may make changes to our Terms in order to comply with any laws or regulations immediately without seeking your consent and without giving you any prior notice.

17. ANTI-MONEY LAUNDERING, COUNTER-TERRORISM FINANCING AND OTHER RELEVANT LAWS

- 17.1 You acknowledge and agree that:
- (a) we must undertake customer identification, verification and monitoring under the *Anti-Money Laundering and Counter-Terrorism Financing Act 2006* (Cth), and any related rules and regulations (collectively, **AML Laws**), and may take any action (or inaction) that Beforepay considers necessary to comply with AML Laws, including suspending or terminating your Beforepay profile;
 - (b) you will provide all information and documents reasonably requested to enable us to comply with relevant laws in Australia or another country; and
 - (c) we may disclose information about you, or your transactions for any regulatory or legal purpose.

18. GENERAL MATTERS

- 18.1 We may assign, novate, or transfer our rights or obligations under this Agreement to a third party without notice to you or your consent if we reasonably consider that any such assignment, novation or transfer is necessary for our legitimate commercial interests.
- 18.2 If we do not exercise a right or remedy fully or at a given time, we can still exercise it later at our discretion.
- 18.3 This Agreement is governed by and is to be construed and enforced in accordance with the laws of the State of New South Wales.

18.4

If any provision of this Agreement is or becomes invalid, unenforceable or breaches any mandatory law or regulation, then it is to be treated as deleted, and will not affect the remaining provisions of this Agreement.

TERMS AND CONDITIONS OF SPLIT PAYMENTS DIRECT DEBIT REQUEST (DDR) ("TERMS")

You request and authorise Split Payments Pty Ltd (User ID 538925 or 613604) to arrange, through its own financial institution, a debit from your nominated account, any amount Split Payments Pty Ltd has deemed payable by you.

This debit or charge will be made through the Bulk Electronic Clearing System (BECS) from your account held at the financial institution you have nominated below and will be subject to the terms and conditions of the Direct Debit Request Service Agreement.

DETAILS OF BANK ACCOUNT TO BE DEBITED

Name of account	Richard Mclean
BSB	063307
Account	10140384

TERMS AND CONDITIONS OF SPLIT PAYMENTS DIRECT DEBIT REQUEST (DDR) SERVICE AGREEMENT

1. INITIAL TERMS Split Payments will debit your nominated account for the amounts and at the frequency of payments as agreed between us on the Split Payments DDR Contract authorised and accepted by you.
2. CHANGE OF TERMS These Terms may be changed immediately with the approval of the Payment Initiator or within the parameters of the Digital Agreement issued by the Payment Initiator and approved by the User. This is managed through the Split Payments Platform.
3. DEFERRING OR STOPPING A PAYMENT Should you wish to defer a payment to another date you must contact the Payment Initiator before the date of that payment to request the deferment. Deferments are entirely at the discretion of the Payment Initiator. You may request to stop an individual payment through the Split Payments platform however you will still be liable to make this payment to the Payment Initiator.
4. ALTERING THE SCHEDULE Should you wish to alter the payment frequency or Day to Debit contact the Payment Initiator. Altering schedule is solely at the discretion of the Payment Initiator. The Payment Initiator may charge a fee for this service. The Payment Initiator shall notify you of these fees. Any changes made will not affect the total amount you would otherwise have paid over the minimum term of your Contract.
5. CANCELLING THE PAYMENTS You can cancel this Direct Debit Request Authority at any time through the Split Payments platform. Cancellation of the authority to debit your account will not terminate your contract or remove your liability to make the payments you have agreed to with the Payment Initiator.
6. DISPUTES If you dispute any debit payment, you must notify the Payment Initiator immediately. The Payment Initiator will respond to your dispute within 7 working days and will immediately refund the amount of the debit if they are not able to substantiate the reason for it. If you do not receive a

satisfactory response from the Payment Initiator to your dispute, contact Split Payments who will respond to you with an answer to your claim within 5 working days if your claim is lodged within 12 months of the disputed drawing, or within 30 working days if your claim is lodged after 12 months from the disputed drawing.

7. **WORKING DAYS** When the day to debit falls on a weekend or public holiday the debit will be initiated on the next working day.
8. **DISHONoured PAYMENTS** It is your responsibility to ensure that on the due date clear funds are available in your nominated account to meet the direct debit payment. Should your payment be dishonoured, you authorise Split Payments to debit your account when clear funds become available in your nominated bank account.
9. **ENQUIRIES** Enquiries may be directed to enquiries@splitpayments.com.au.
10. **YOUR OTHER RESPONSIBILITIES** In addition to those already mentioned, you are responsible for ensuring that your nominated account is able to accept direct debits. If it is not, it is your responsibility to provide Split Payments with a new account number.

These Terms were last updated on **02 November 2021**